ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	54th Commission Meeting
DATE:	09 November 2021
TIME:	02:00 PM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1.	Present the concept note on Exit Interview (EI) – PPS	The Commission in principal approved the concept note *(attached)* and directed the HRS to implement the Exit Interview and report back to Commission on its experience. Some of the specific comments were: • HRO to conduct both the first and second interview and follow up with the interviewee especially for second interview for full compliance. • HRC to review on how to make the departing employee comply to the EI. • Consult on the sample questionnaires with Research Division for any improvement. The Commission also noted that while the EI is a tool to learn from the departing employee, the information gathered can be used as a retention strategy. Towards this, the need to conduct a study by an external stakeholder on the factors making an employee stay in the ACC was found imperative in case if the ACC becomes an independent agency.
2.	Present issues related to Simplified Procurement Rules & Regulations (SPRR) – PPS	In addition to the issues and/or recommendations compiled related to the SPRR 2021 to be shared during the consultative meeting by Ministry of Finance, the Commission directed to also include on application of BSR, liquidated damage, inventory management system, among others. *Compiled list of issues/recommendations attached.*
3.	Any others: • Action Taken Report (ATR) for reporting year 2020 – ADMD, DoPE	For the reporting year 2020, of the 25,255 covered persons (Schedule I – 698 & Schedule II - 25,255), there were 93 late declarants and 43 non-declarants. Out of the 43 non-declarants, penalty was imposed on 18 individuals. While the penalties are currently being imposed, the ACC did not receive ATR from three agencies due to administrative reasons in their agencies. Towards this, the Commission approved the recommendation of the Division to extend the submission of report till end of December 2021. The Commission directed the Division to come up with an overall plan for the ADMD and present in the next

		Commission Meeting. The Division was also asked to see the scope of integrating the data with other data repository agencies and how can the ADS be used especially towards management of Conflict of Interest.
	• Follow up on the Annual Report 2020 – 2021 discussions	PPS was directed to compile the discussion points during the presentation of Annual Report 2020 – 2021 to the Good Governance Committees of National Assembly and National Council and present to Commission during the next Commission Meeting.
	• Check and update on the status on Commission decisions	The Commission noted that most of the decisions of the Commission were categorized under Operations in the Commission's Decision APP. Towards this, PPS was directed to review the categorization of decisions and accordingly update the Commission decisions so far.
	• Expediate finalization of Strategic Anti-Corruption Roadmap 2021-2030	The Commission directed PPS to expedite the finalization of the roadmap and to put timeline on the measures that needs to be done. Some of the points to be noted were: • *Upgradation of TSD to Department:* The division to come up with a plan with focus in HR requirement as well as milestones to be achieved for upgradation into a Department. • *Reduce backlog of complaints:* In order to expedite the disposal of backlog complaints qualified for investigation, the Commission directed to dedicate a team to review the complaints. Some complaints can be resolved either by sharing with relevant agencies like sharing land cases to the NLCS with support from the ACC or forming a taskforce consisting of members from relevant agencies like RAA and ACC. The Commission iterated that first and foremost it is important to bring the complaints from 2006 – 2016 to logical conclusion and then look into complaints after 2017. In general, backlog should not be more than two years. • *Introduce new investigative method:* Some of the investigative techniques has become known to the general public or has become redundant. Thus, to be abreast with changing times, the possibility of recruiting technical experts from other agencies (national, regional & international) was suggested. • *Consistency in management of administrative complaints:* DoPS to study and come up with recommendation on how to bring consistency on the decisions of the administrative complaints across the

		agencies and review the proportionality of action vis-à-vis administrative lapses. • *Enhance the outreach programs:* While the integration of aspects of ethics and integrity has been put into programs such as the Gyalsung Project and TVET, ED needs to look at how to make the assessment continuous throughout the program so that the participants inherit the values. • *Establishment of regional offices:* SS to explore on establishment of regional offices and at the same time expedite operationalizing the Phuntsholing office as one of the regional offices.

Commissioner **Commissioner** **Chairperson**